

Ashish @ Sachin Kesarwani And Others vs State Of U.P. And Another on 18 January, 2010

Author: Vineet Saran

Bench: Vineet Saran

Court No. - 55

Case :- APPLICATION U/S 482 No. - 897 of 2010

Petitioner :- Ashish @ Sachin Kesarwani And Others

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Abdul Majeed

Respondent Counsel :- Govt. Advocate

Hon'ble Vineet Saran,J.

Heard Sri Abdul Majeed learned counsel for the petitioners as well as learned A.G.A. for the State and Mohd. Mobin Khan, learned counsel appearing for the private respondent no.2 and have perused the record.

The case of the petitioners is that the petitioner no.1 had married the respondent no.2 Smt. Sarika Kesarwani on 9.2.2003. Since there was strained relations between the parties, the respondent no.2 lodged a first information report under sections 498A, 323, 504 I.P.C. read with section 3/4 Dowry Prohibition Act. However, after the lodging of the first information report by the respondent no.2, a petition under section 13 of the Hindu Marriage Act was filed in which the parties have entered into a compromise and divorce has been granted. It is submitted that on the basis of the compromise a sum of Rs.13 (Thirteen) lacs has been paid by the petitioners to the respondent no.2. It is also stated that since the matter has been settled between the parties, the charge sheet as well as the entire proceedings of criminal case no. 3 of 2010 State vs. Ashish and others (under sections 498A, 323, 504 I.P.C. and section 3/4 Dowry Prohibition Act, P.S. Phoolpur, District Allahabad) pending in the court of Special Chief Judicial Magistrate, Allahabad be quashed.

The respondent no.2 has filed a short counter affidavit today in Court accepting the aforesaid position regarding compromise and has also, in paragraph 8 of the said short counter affidavit, stated that "since the matter has been compromised between the parties including the deponent, and the deponent does not want to proceed further with the proceedings of the present case, and therefore, Hon'ble Court may kindly be pleased to allow the application and quash the proceeding of Criminal Case no. 3/2010 State Vs. Ashish alias Sachin and others for the offence under section 498A, 323, 504 I.P.C. and 3/4 Dowry Prohibition Act relating to Police Station Phulpur, District Allahabad pending in the court of Special Chief Judicial Magistrate, Allahabad."

Though the offences for which the petitioners have been charged are non- compoundable but the learned counsel for the petitioners has relied upon a decision of the Apex Court in the case of B.S.Joshi vs. State of Haryana 2003 S.C.C. (Cri) 848 wherein it has been held that in such a situation where the husband and wife have settled the matter by way of a compromise, the parties seeking quashing of the F.I.R. due to settlement of dispute between the husband and the wife, who also agreed for mutation divorce, is justified as there would be almost no chance of conviction after the compromise and it would be improper to decline to exercise power on the ground that it would be permitting the parties to compound non-compoundable offences. Thus in order to meet the ends of justice the order directing quashing of the proceedings under section 498A I.P.C. has been given.

Considering the facts and circumstances of this case and in view of the decision of the Apex Court in the case of B.S.Joshi (supra), since it is not disputed between the parties that they had entered into a compromise and the respondent no.2 does not oppose the prayer for quashing of the proceedings, this petition under section 482 Cr.P.C. is allowed and the charge sheet as well as the entire proceedings of Criminal Case no. 3 of 2010 State vs. Ashish and others under sections 498A, 323, 504 I.P.C. and section 3/4 Dowry Prohibition Act, P.S. Phoolpur, District Allahabad, pending in the Court of Special Chief Judicial Magistrate, Allahabad, are quashed.

Order Date :- 18.1.2010 dps